

PERSONAL DECLARATION OF NITHIN JOSE

In Support of Response to Request for Evidence
Form I-539, Application to Change Nonimmigrant Status
Receipt Number: WAC2690017021

I. PURPOSE AND GOOD FAITH INTENT

I, Nithin Jose, submit this declaration in response to the Request for Evidence issued by U.S. Citizenship and Immigration Services (USCIS). This statement is provided to clarify my intent, demonstrate my compliance with the requirements of B-2 nonimmigrant classification, and establish that my actions were taken in good faith as a temporary visitor for pleasure while concluding my personal affairs and arranging my departure from the United States.

My request for B-2 status was made to allow me to remain in the United States temporarily as a visitor for pleasure, while also completing certain residual personal matters, including the sale of my primary residence, prior to my departure.

II. TERMINATION OF EMPLOYMENT AND PERSONAL TRANSITION

My employment as a Network Deployment Engineer with Meta Platforms, Inc. ended on September 8, 2025.

Following the conclusion of my employment, I transitioned into a period of temporary stay consistent with B-2 classification, during which I remained in the United States as a visitor for personal and recreational purposes.

During this period, I also undertook the process of winding down my personal affairs, including the sale of my residence located at 29309 Humboldt Ct, Menifee, California, which had been listed for sale in October 2025 and subsequently sold in March 2026.

III. ACTIVITIES CONSISTENT WITH B-2 STATUS

During the period following my termination, my activities were consistent with those of a visitor for pleasure.

I engaged in personal travel, tourism, and recreational activities within the United States, including travel to South Carolina in November 2025 and travel to San Diego, California in March 2026. These trips were undertaken for leisure and personal exploration.

In addition to these activities, I attended to routine personal matters associated with concluding my stay in the United States. This included coordinating the sale of my residence, which involved periodic communication with my real estate agent, reviewing offers, and completing necessary documentation related to the transaction.

At no time did I engage in any form of employment, whether authorized or unauthorized.

IV. NECESSITY OF TIME BEYOND THE H-1B GRACE PERIOD

I was unable to complete my personal arrangements and finalize my departure within the discretionary 60-day grace period following my employment termination.

The sale of my residence, which was already in process, involved multiple third-party dependencies, including buyer financing approvals, inspections, and escrow timelines, which were outside of my control and resulted in unavoidable delays.

While my primary stay in the United States during this period was for personal and recreational purposes, my presence also enabled me to ensure that these remaining personal matters were concluded in an orderly manner prior to departure.

V. MAINTENANCE OF LAWFUL STATUS AND GOOD-FAITH FILING

Following the termination of my H-1B employment, I remained within the authorized 60-day grace period.

Prior to the expiration of this period, I filed Form I-539 requesting a change of status to B-2 classification. This filing was made in good faith to remain in lawful status while continuing my temporary stay as a visitor for pleasure and completing my departure preparations.

Since the filing of my B-2 application, I have remained in a period of authorized stay while the application has been pending. I have complied fully with all applicable immigration laws and have not engaged in any activities inconsistent with B-2 status.

VI. CLARIFICATION REGARDING OPPLANE H-1B PETITION

The H-1B petition filed by Opplane Inc. in December 2025 was not the result of any job search conducted while I was in B-2 status.

My interaction with Opplane began in March 2025 and continued through April 2025, while I was still employed in valid H-1B status. This process included multiple interview stages and was initiated several months prior to the termination of my employment.

Following my termination, I did not initiate any new job search activities. The subsequent filing by Opplane was an independent action taken by the employer based on this earlier recruitment process.

My stay in the United States was not dependent on the outcome of any employment-based petition, and I did not remain in the United States to seek or await employment opportunities.

VII. DEPARTURE ARRANGEMENTS

Upon concluding my stay in the United States, I made arrangements to depart the country.

Due to international travel disruptions during February and March 2026 related to regional geopolitical conditions, including impacts on transit routes through the Middle East, I was unable to secure immediate travel.

Once stable travel options became available, I booked a confirmed flight to Kochi, India, with departure scheduled for May 2026.

VIII. PERMANENT FOREIGN RESIDENCE AND TIES TO INDIA

I maintain a residence in India that I have no intention of abandoning.

I have an established residential arrangement in Kalady, Kerala. Additionally, I have strong familial ties, as I am the only son of aging parents who depend on me for their care and support.

I also maintain significant financial ties to India, including a term deposit with Federal Bank valued at approximately INR 2,787,528 (equivalent to approximately USD 33,000), further demonstrating my financial and residential ties abroad.

IX. CONCLUSION

I have used the requested B-2 period as a temporary visitor for pleasure, while also concluding my personal affairs in the United States and preparing for my departure.

At no point did I use or intend to use my B-2 stay as a means to remain in the United States for employment or to await the adjudication of any employment-based petition.

My confirmed departure in May 2026, combined with my strong familial and financial ties in India, demonstrates my clear intent to depart the United States and resume my permanent residence abroad.

I declare under penalty of perjury under the laws of the United States that the foregoing is true and correct.

Executed on: April 06, 2026

A handwritten signature in black ink, appearing to read "Nithin Jose", with a stylized flourish at the end.

NITHIN JOSE

Applicant